

Government Bodies

GOVERNMENT BODIES

(1) Election Commission

- The Election Commission is a permanent, independent body established by the Constitution of India directly to ensure free & fair elections in the country. Article 324 of the Constitution provides that the power of superintendence, direction & control of elections to parliament, state legislatures, the office of president of India & the office of vice-president of India shall be vested in the election commission.
- Elections are conducted according to the constitutional provisions supplemented by laws made by Parliament.
- The major laws are Representation of the People Act, 1950, which mainly deals with the preparation & revision of electoral rolls, & the Representation of the People Act, 1951, which deals in detail with all aspects of conduct of elections & past election disputes.
- The electoral system in India is borrowed from the one operating in Great Britain. Presently, the Election Commission consists of one Chief Election Commissioner (CEC) & two Election Commissioners.
- The Commission works under the overall supervision of the Chief Election Commissioner.
- The tenure of the CEC & the Election Commissioners has been fixed as six years, subject to the maximum age limit of 65 years (whichever is earlier).
- The Chief Election Commissioner & the Election Commissioners are placed at par in matters of salary & allowances & they are the same as those of a judge of Supreme Court.
- The Chief Election Commissioner is not eligible for reappointment.
- The Election Commission is not concerned with the elections to Panchayats & municipalities in the states.
- The elections to the Panchayats & the municipalities in the states are conducted by 'State Election Commissions'.

Independence of CEC

Article 324 of the Constitution has made the following provisions to safeguard & ensure the independent & impartial functioning of the Election Commission:

1. The Chief Election Commissioner is provided with the security of tenure. He cannot be removed from his office except in same manner & on the same grounds as a judge of the Supreme Court.
2. The Election Commissioner cannot be removed from office except on the recommendation of the Chief Election Commissioner.

Powers & functions

1. To determine the territorial areas of the electoral constituencies throughout the country on the basis of the Delimitation Commission Act of Parliament.
2. To prepare & periodically revise electoral rolls & to register all eligible voters.
3. To notify the dates & schedules of elections & to scrutinize nomination papers.
4. To grant recognition to political parties & allot election symbols to them.
5. To act as a court for settling disputes related to granting of recognition to political parties & allotment of election symbols to them.
6. To determine the code of conduct to be observed by the parties & the candidates at the time of elections.
7. To advise the President on matters relating to the disqualification of the members of Parliament.
8. To advise the governor on matters relating to the disqualification of the members of state legislature.
9. To cancel polls in the event of rigging, booth capturing, violence & other irregularities.
10. To register political parties for the purpose of elections & grant them the status of national or state parties on the basis of their poll performance.

Union Public Service Commission

- With the promulgation of the new Constitution for independent India on 26th January, 1950, the Federal Public Service Commission was accorded a constitutional status as an autonomous entity & given the title – Union Public Service Commission.
- The UPSC has been established under Article 315 of the Constitution of India. The Commission consists of a Chairman & ten Members.

- The chairman & members of the commission hold office for a term of six years or until they attain the age of 65 years, whichever is earlier.
- It is an independent constitutional body.
- The main function of UPSC is Recruitment to services & promotions on the posts under the Union through conduct of competitive examinations.

State Public Service Commission

- A state public service commission consists of a chairman & other members appointed by the governor of the state. But they can be removed only by the President.
- It is an independent constitutional body.
- The chairman & members of the commission hold office for a term of six years or until they attain the age of 62 years, whichever is earlier.
- The main function of SPSC is to conduct examinations for appointments to the services of the state.

Joint State Public Service Commission

- The Constitution makes a provision for the establishment of a Joint State Public Service Commission (JSPSC) for two or more states.
- A JSPSC can be created by an act of Parliament on the request of the state legislatures concerned. Thus, a JSPSC is a statutory & not a constitutional body.
- The chairman of JSPSC is appointed by the President.

Comptroller & Auditor General

- The Constitution of India (Article 148) provides for an independent office of the Comptroller & Auditor General of India (CAG).
- It is the supreme audit institution of India.
- He is the head of the Indian Audit & Accounts Department & the guardian of the public purse & controls the entire financial system of the country at both the levels – the Centre & the state.

Appointment & term

- The CAG is appointed by the President of India. He holds office for a period of six years or up to the age of 65 years, whichever is earlier.
- He can resign any time from his office by addressing the resignation letter to the president. He can also be removed by the President on same

grounds & in the same manner as a judge of the Supreme Court.

Main function of the CAG

1. He audits the accounts related to all expenditure from the Consolidated Fund of India & consolidated fund of each state.
2. He audits all expenditure from the Contingency Fund of India & the Public Account of India as well as the contingency fund of each state & the public account of each state.
3. He audits the accounts of any other authority when requested by the President or Governor.
Note: He submits his audit reports relating to the accounts of the Centre to President & relating to the accounts of a state to governor.

Attorney General of India

- Art. 76 states that the President shall appoint a person who is qualified to be appointed as a judge of the Supreme Court to be the Attorney General of India.
- He is the first legal officer of the Government of India.
- The term of office of the AGI is not fixed by the Constitution of India.
- He holds office during the pleasure of the President & receives remuneration as the President may determine. Although, he is not a member of either House of Parliament, he enjoys the right to attend & speak in the Parliamentary deliberations & meeting (of both the Lok Sabha & the Rajya Sabha), without a right to vote.
- He advises the Government of India on any legal matter.
- He performs any legal duties assigned by the President of India.
- He discharges any functions conferred on him by the Constitution or the President.
- In the performance of his official duties, the Attorney General has the right of audience in all courts in the territory of India.
- He is entitled to all the privileges & immunities as a Member of Parliament.

Note: The Constitution (Article 165) has provided for the office of the advocate general for the states. He is the highest law officer in the state. Thus he corresponds to the Attorney General of India. He is appointed by the Governor of the state.